

AI Addendum

1. AI Services

1. Using AI Services. The AI Services are part of the Product and subject to the Agreement as supplemented by this AI Addendum. Customer may use AI Services by providing Input. The AI Services may generate Output in response to Input. Provider may copy, display, modify, distribute, and use Input to the extent necessary to provide the AI Services as contemplated by this AI Addendum. Customer authorizes Provider to process Input for all such purposes.

2. Restrictions. Without limiting the restrictions contained in the Agreement, Customer will not (and will not allow anyone else to): (a) use the AI Services for decision-making in a regulated industry or capacity without proper human oversight and review in compliance with Applicable Laws and applicable professional ethics, guidelines, and rules; (b) use the AI Services to violate, misappropriate, or otherwise infringe the intellectual property or other proprietary rights of others; or (c) falsely state Output was created by a human.

3. Model Training. Unless the Cover Page identifies Training Data and Training Purposes, Provider may not use Customer's Inputs or Outputs to Train any Model. If the Cover Page permits Training, then subject to the Training Restrictions, Provider may copy, modify, distribute, and use Training Data for the Training Purposes.

4. Non-Training Improvement. Subject to the Improvement Restrictions, Provider may use Input, Output, and Training Data to provide, maintain, develop, and improve the AI System, provided that such usage does not constitute Training except to the extent authorized for Training Purposes.

2. Intellectual Property and Privacy

1. Ownership. As between the parties, Customer (a) retains all right, title, and interest in and to all Input, and (b) owns all Output. To the extent permitted by Applicable Laws, Provider hereby assigns to Customer all right, title, and interest?if any?in and to Output.

2. Personal Data. Nothing in this AI Addendum will reduce or limit Provider's obligations under Applicable Data Protection Laws regarding Personal Data that may be contained in Input.

3. Rights to Input. Customer represents and warrants that it, all Users, and anyone submitting Input each have and will continue to have all rights necessary to submit Input to the AI Services.

3. Disclaimers

1. Nature of AI. Due to the nature of artificial intelligence and machine learning, information generated by the AI Services may be incorrect

or inaccurate. The AI Services are not human and are not a substitute for human oversight.

Output generated by the AI Services may not be protectable as intellectual property.

2. Similarity of Output. Output may resemble or be duplicative of data, information, and materials created by the AI Services for others. Provider does not provide any representation or warranty that Output (a) does not and will not incorporate or reflect the data, information, prompts, or materials of others, (b) will not violate, misappropriate, or otherwise infringe upon the intellectual property or other proprietary rights of another person or entity, or (c) will not be reproduced in the same or similar way to another user of the AI Services.

4. Definitions

1. "AI Addendum Standard Terms" means these Common Paper AI Addendum Standard Terms Version 1.0, which are posted at <https://commonpaper.com/standards/ai-addendum/1.0/>.

2. "AI Services" means the artificial intelligence or machine learning components of the Product, including the AI System and underlying Model(s).

3. "AI System" means the artificial intelligence or machine learning application, program, and services layers of the AI Services, excluding the underlying Models.

4. "Input" means the data, information, prompts, or materials submitted by or on behalf of Customer or Users to the AI Services but excludes Feedback.

5. "Model" means a large language, machine learning, or artificial intelligence model.

6. "Output" means the data, information, or materials created by the AI Services in response to Input.

7. "Train" or "Training" means the use of data, information, or materials to create or improve a Model.